

HEADNOTE

- “1. According to Rule 13(1)(n) of the Rules of Procedure, in technically complex proceedings, the statement of claim must already contain explanations regarding the interpretation of features of the asserted patent claim that are not readily understood on their own (here: location of reference signals for determining uplink channel quality within an available transmission bandwidth to avoid interference with control channels in the context of LTE standardization).*
- 2. In a reply to a counterclaim for revocation, the patent proprietor must base its arguments on concrete features of the patent claim.*
- 3. Rule 30.2 of the Rules of Procedure is a strict preclusion rule that only permits later requests for amendment of the patent with the permission of the court. Corresponding requests must be substantiated in detail. When assessing whether a new amendment is to be permitted, it will be essential to consider whether the new version of the amendment would already have been necessary at an earlier time in response to the arguments of the claimant in revocation and whether the late request for amendment causes delays in the proceedings.*
- 4. On the legal interest in a counterclaim directed at and requesting a determination of FRAND license rates.”*

COURT
Local Division in Mannheim

PROCEEDINGS
Procedural order

PATENT
EP 2 568 724

Radio Communication Device and
Radio Communication Method

KEYWORDS

Claim interpretation

Revocation counterclaim

Amendment procedure

FRAND licensing

Statement of claim

Rule 13 Contents of the Statement of claim**SUMMARY**

The Local Division in Mannheim issued a procedural order. The patent at issue relates to a Radio Communication Device and Radio Communication Method. According to the headnotes of the decision, in technically complex proceedings, patent claimants must explain unfamiliar technical terms and concepts directly in their statement of claim rather than leaving these explanations for later stages. When facing a revocation counterclaim, the patent proprietor's arguments must be grounded in specific features actually present in the patent claim itself. The court applies Rule 30.2 RoP as a strict procedural cutoff, meaning that requests to amend a patent after the initial deadline require explicit permission only when the amendment is thoroughly justified and would not have been necessary earlier in response to known revocation arguments. The court must also consider whether granting a late amendment request would cause further delays to the proceedings.